
POLICY ON PREVENTION OF SEXUAL HARASSMENT OF WOMEN AT WORKPLACE (“POSH POLICY”)

Field	Details
Policy Title	Prevention, Prohibition and Redressal of Sexual Harassment of Women at Workplace (“ POSH Policy ”)
Policy Owner	Human Resources, jointly with Legal & Compliance
Applicable Law	The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (“ POSH Act ”) and the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013 (“ Rules ”), as amended from time to time.
Applicability	All workplaces and operational locations of NDR Smart Spaces Private Limited, as applicable under the POSH Act
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Reviewed & Approved By	Board of Directors
Review Frequency	Annually, and immediately upon any amendment to the POSH Act / Rules

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1. COMMITMENT

NDR Smart Spaces Private Limited (the “**Company**”) is committed to providing and maintaining a safe, respectful, and dignified working environment, free from sexual harassment in any form, for every person who works at, visits, or otherwise engages with the Company. The Company recognises that prevention, prohibition and redressal of sexual harassment is not merely a workplace or human resources objective, but also a statutory obligation and an important governance responsibility under the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (“**POSH Act**”) and the rules framed thereunder (“**Rules**”).

The Company has zero tolerance towards sexual harassment and is committed to taking appropriate preventive, corrective and remedial measures in accordance with applicable law. This commitment extends to conduct involving or affecting employees and other people who interact, engages, or have a professional association with the Company, including employees, consultants, contractors, clients, vendors, visitors, business partners, and any other person associated with or interacting with the Company.

This Policy establishes the framework for the **prevention, prohibition and redressal of sexual harassment**, including the responsibilities of the Company, its employees and the Internal Committee, and the mechanism for receiving, examining and resolving complaints in accordance with the POSH Act and the Rules.

The Board has approved and adopted POSH Policy on September 05, 2026, effective from August 01, 2026.

2. OBJECTIVE / PURPOSE

To provide protection against sexual harassment of women at the workplace, and to establish a fair, time-bound, and legally compliant mechanism for the prevention, prohibition, and redressal of complaints of sexual harassment and matters connected therewith.

3. SCOPE & APPLICABILITY

This Policy applies to:

- All employees, irrespective of their designation or nature of engagement, including permanent, probationary, temporary, contractual, or ad-hoc, including trainees, interns, and apprentices;
- All Directors and members of the Board in their interaction with employees or other persons covered under this Policy.
- All visitors, clients, customers, and third parties present at any Workplace of the Company for business or any other authorised purpose; and
- All vendors, suppliers, contractors, and their personnel engaged on behalf of the Company.

This Policy extends to all “**Workplaces**” of the Company, as defined under the POSH Act, and includes, without limitation:

- Any office, branch, off-site, warehouses or operational location owned, controlled, or established by the Company;
- Any site, place of accommodation, restaurants or other location visited by an employee during or arising out of the course of employment, including business travel and Company-sponsored events;
- Any mode of transport provided by or on behalf of the Company for undertaking such a journey;

- Digital and remote workplaces, including work-from-home arrangements, virtual meetings, official email, messaging platforms, and other digital communication channels used for work purposes to the extent the conduct arises out of or relates to employment.

An alleged act of sexual harassment committed during or outside office hours, within or outside the Company's premises, if connected with or arising out of employment or the professional relationship with the Company, falls within the purview of this Policy.

4. DEFINITIONS

“Sexual Harassment” includes any one or more unwelcome acts or behaviour (whether directly or by implication), including **but not limited to**:

- Physical contact or advances of a sexual nature;
- A demand or request for sexual favours;
- Sexually coloured remarks, or unrequited remarks about a person's clothing or body;
- Showing pornography or sexually explicit material, including through email, SMS, MMS, or social media (**“Digital Harassment”**);
- Repeatedly seeking to socialise, or expressions of sexual interest, against a person's wishes;
- Stalking or making repeated unnecessary/unwelcome visits to the place of residence
- Sexually suggestive gifts, stalking, or unwelcome visits to a person's residence;
- Persistent watching or following of a person;
- Any other unwelcome physical, verbal, or non-verbal conduct of a sexual or unwelcome nature.

The following circumstances, among others, if connected with any such act or behaviour, amount to sexual harassment:

- Implied or explicit promise of preferential treatment in employment;
- Implied or explicit threat of detrimental treatment in employment or regarding present or future employment status;
- Interference with work, or creation of an intimidating, hostile, or offensive work environment;
- Humiliating treatment likely to affect health or safety.

“Aggrieved Woman” means in relation to a Workplace, a woman of any age, whether employed or not, who alleges to have been subjected to any act of sexual harassment at a workplace. This includes permanent, temporary, contractual, trainee, intern and other person engaged in or working at the workplace, as well as visitors to the workplace, where applicable.

“Complainant” means the Aggrieved Woman/ Employee who makes a complaint of sexual harassment under this Policy, or, where she is unable to make such complaint due to physical or mental incapacity, death, or any other circumstance prescribed under applicable law, a person authorised or permitted under applicable law to make such complaint on her behalf.

“Respondent” means the person against whom a complaint of sexual harassment has been made.

“Employee” means any person employed at the workplace for any work, on a regular, temporary, ad-hoc, or daily-wage basis, directly or through an agent/contractor, with or without the knowledge of the principal employer, whether for remuneration or otherwise, and includes co-workers, contract workers, probationers, trainees, and apprentices.

“Employer” means the person responsible for the management, supervision, and control of the workplace, and, for the purposes of statutory compliance and reporting, the Board of Directors and designated officers of the Company.

“Workplace” means as defined in Section 3 (Scope & Applicability) above, in line with Section 2(o) of the Act.

“Internal Committee” (“IC”) means the Committee constituted by the Company as per this Policy.

5. GUIDING PRINCIPLE: EFFECT, NOT INTENT

It is the effect or impact of the conduct on the Aggrieved Woman, and whether the conduct was unwelcome, that shall be considered in assessing whether an act constitutes sexual harassment, and the Respondent's intention alone shall not be determinative.

Conduct that can reasonably be perceived as offensive, humiliating, or intimidating or unwelcome must be avoided, regardless of whether such conduct was intended to cause offense. All persons covered by this Policy are encouraged to communicate clearly when any behaviour is unwelcome and to respect such communication.

6. ROLES & RESPONSIBILITIES

Compliance with this Policy is a shared responsibility across the organization:

6.1 Every Individual

- Must not engage in, encourage, or condone sexual harassment;
- Should support colleagues in rejecting unwelcome behaviour and, where they have witnessed the incident, cooperate as a witness if a complaint is lodged; and
- Must cooperate with any inquiry or process conducted under this Policy, as applicable.

6.2 Managers & Supervisors

- Must ensure no employee under their supervision is subjected to sexual harassment, and that equal treatment is maintained;
- Must communicate that sexual harassment will not be tolerated and that complaints will be taken seriously;
- Must ensure that no complainant, respondent, or witness is subjected to retaliation, intimidation, or adverse treatment for participating in the process; and
- Must promptly escalate any complaint received to HR / the ICC immediately and shall not attempt to informally resolve, suppress or discourage a complaint.

6.3 Human Resources

- Administers awareness, training, induction, and notice-board display requirements under this Policy;
- Provides administrative support to the ICC and ensures timelines under this Policy are tracked and complied with; and
- Maintains records of complaints, inquiries, and outcomes in a confidential, access-controlled manner.

6.4 Board of Directors

- Approves and periodically reviews this Policy as a matter of corporate governance framework;
- Receives, at least annually, appropriate reporting on the implementation of this Policy, including the number, nature, and disposal of complaints, and on ICC training and functioning;
- Oversees the Company's compliance with applicable requirements under the Act and Rules and promotes effective implementation of this Policy.

6.5 Legal and Compliance

- Provides guidance on the Act, Rules and applicable legal requirements and advises the ICC on procedural and legal matters and tracks amendments to the Act, Rules, and applicable criminal law, and updates this Policy;
- Coordinates statutory filings and regulatory correspondence relating to POSH compliance;
- Ensure POSH related disclosures in the Company's Annual Report and other applicable regulatory or sustainability disclosures; and
- Advises on referral of matters to the police or other appropriate authorities where an aggrieved woman/employee elects to pursue action under applicable criminal law.

7. INTERNAL COMMITTEE ("IC")

To prevent instances of sexual harassment and to receive and effectively deal with complaints as well as ensuring time bound treatment of such complaints, an **Internal Committee ("IC")** is constituted by the Company. The details of the IC are notified to all persons at the location (workplaces).

7.1 Composition

The ICC shall be constituted in accordance with Section 4(2) of the Act and shall comprise:

- a Presiding Officer who shall be a woman employed at a senior level;
- not less than two members from amongst employees, preferably committed to the cause of women or having experience in social work or legal knowledge; and
- one external member from an NGO or association committed to the cause of women or a person familiar with issues relating to sexual harassment.

At least one-half of the total members of the IC shall be women.

The composition of the IC for the Company's principal workplace is as follows:

S. No.	Name	Designation	Position
1.	Ms. Lavanya Prabhakar	HR Head	Presiding Officer
2.	Mr. Raj Srinivasan	Chief Executive Officer (CEO)	Member
3.	Mr. Jeevan Kumar Kodali	Legal Head	Member
4.	Ms. Swati Agarwal	Company Secretary	Member
5.	Ms. Sudha Murali	-	External Member

7.2 Tenure

The Presiding Officer and every members of the IC shall hold office for a term not exceeding 03 (three) years from the date of their nomination, in accordance with the Act and Rules. Any vacancy shall be filled promptly in accordance with the Act.

7.3 Powers of the ICC

For the purpose of conducting an inquiry, the ICC shall have the powers vested in a civil court under the Code of Civil Procedure, 1908, in accordance with Section 11(3) of the Act, including the power to summon and enforce attendance, examine persons on oath, and require discovery and production of documents.

7.4 Responsibility of IC

- Receiving complaints of sexual harassment at the workplace;
- Initiating and conducting inquiry as per the established procedure and the Act;
- Submitting findings and recommendations arising from inquiries;
- Maintaining strict confidentiality throughout the process;
- Meeting as required for case management and related matters;
- Undertaking POSH-specific training and sensitisation periodically; and
- Submit an Annual Report to the Employer and, through the Presiding Officer, to the District Officer, as required under Section 21 of the Act.

8. GRIEVANCE REDRESSAL MECHANISM — LODGING A COMPLAINT

A Complainant should submit a written complaint, together with any available documentary evidence and the names of witnesses, to any IC member, within 3 months of the date of the incident or in case of a series of incidents, from the date of the last incident. The IC may extend this period by a further 3 months, for reasons recorded in writing, where it is satisfied that circumstances prevented the Complainant from filing the complaint within the prescribed time.

Where a complaint cannot be made in writing, the Presiding Officer or any IC member shall provide reasonable assistance to Complainant to reduce it to writing.

Where the Aggrieved Woman is unable to lodge a complaint due to physical or mental incapacity, or for any other reason or in the event of her death, the following persons may do so on her behalf, with her written consent or that of her legal heir:

- Her legal heir, relative, friend, or guardian;
- A co-worker;
- Any person with knowledge of the incident, subject to the Aggrieved Woman's written consent.

If a complaint is first received by a person other than a member of IC, such person shall promptly report it to the IC. Complaints are to be dealt with speedily, discreetly and confidentially in accordance with the Act, Rules and this Policy.

9. RECEIVING A COMPLAINT — GUIDELINES

Whoever receives a complaint (whether an IC member, manager, or HR representative) must:

- Listen without pre-judging the situation, and confirm to the Complainant that the matter will be reported to the IC and followed up speedily;
- Take written notes, using the Complainant's own words wherever possible;
- Keep all notes and information strictly confidential, and obtain the Complainant's agreement before proceeding to a formal process;
- Explain that, while the process will be kept confidential, the Respondent and relevant witnesses may necessarily become aware of the complaint and the Complainant's identity in order for a fair inquiry to be conducted; and

- Take reasonable steps to prevent victimization, retaliation, intimidation or adverse treatment of either the Complainant, Respondent or Witnesses during the process.

10. RESOLUTION THROUGH CONCILIATION

Before initiating a formal inquiry, and only if requested by the Aggrieved Woman/Employee, the IC may attempt to conciliate the matter between the parties. No monetary settlement shall be made on the basis of conciliation. Conciliation, where opted for, is ordinarily completed within 2 weeks of receipt of the complaint.

Where a settlement is reached, the IC records the settlement and reports it to the Employer for implementation of any agreed action; copies are provided to both parties, and no further inquiry is conducted unless the terms of the settlement are subsequently breached. Where conciliation is not requested, does not result in settlement, or its terms are breached, the matter proceeds with formal inquiry in accordance with the Act, Rules and this Policy.

11. RESOLUTION THROUGH FORMAL INQUIRY

The IC shall proceed to inquire into a complaint within one week of receipt of the original complaint, or of the closure of conciliation, or of a repeat complaint alleging breach of settlement terms.

The inquiry shall follow the following procedure:

- The IC forwards one copy of the complaint to the Respondent within 7 days of receiving a complaint;
- The Respondent shall submit a written reply, together with supporting documents and witness details, within 10 working days of receiving the copy of the complaint;
- No legal practitioner shall be permitted to represent either party at any stage of the inquiry;
- A minimum of 3 IC members, including the Presiding Officer, shall be present for the inquiry;
- The IC shall provide fair opportunities to the Respondent and the Complainant to present their case separately and impartially, in accordance with the principles of natural justice, and IC may facilitate questioning of witnesses through the IC, where considered appropriate and consistent with natural justice.
- All proceedings shall be appropriately documented, and detailed notes of meetings are prepared and kept confidential; and
- The inquiry, including submission of the Inquiry Report, shall be completed within 90 days from the date of commencement of inquiry.

12. PREPARING OF THE INQUIRY REPORT

In arriving at its findings and recommendations, the IC shall consider, among other things:

- Whether the language, visual material, or physical behaviour in question was of a sexual or derogatory nature;
- Whether the allegations follow logically and reasonably from the evidence;
- The credibility of the Complainant, Respondent, witnesses, and evidence;
- Other relevant facts, including any prior substantiated complaints against the Respondent;
- Whether both parties were given a fair opportunity to be heard.

ICC shall prepare its findings and recommendations based on the evidence and circumstances established during the inquiry and shall communicate with both parties in accordance with the Act and Rules.

13. INTERIM RELIEF

During the pendency of an inquiry, on a written request from the Complainant, the IC may recommend that the Employer:

- Transfer the Complainant or the Respondent to another workplace;
- Grant the Complainant leave of up to 3 months, in addition to her regular leave entitlement;
- Restrain the Respondent from assessing or evaluating the Complainant's work performance, and assign the same to another officer; and
- Grant such other interim relief as may be prescribed under the Act.

The Employer shall take appropriate action on such recommendations and inform the IC of the implementation thereof.

14. TERMINATION OF INQUIRY / EX-PARTE DECISIONS

Where the Complainant or the Respondent fails, without sufficient cause, to present herself or himself for three consecutive hearings convened by IC, the IC may terminate the inquiry proceedings or pass an ex-parte decision, provided that no such termination or ex-parte decision shall be made without giving the concerned party at least 15 days' prior written notice.

15. ACTION AFTER INQUIRY — COMPLAINT NOT SUBSTANTIATED

Where the IC arrives at the conclusion that the allegation against the Respondent has not been proved, it shall recommend to the Employer that no action is required to be taken against the Respondent.

16. ACTION AFTER INQUIRY — COMPLAINT SUBSTANTIATED

Where the IC concludes that the allegation has been proved, it shall recommend to the Employer that the conduct be treated as misconduct under applicable service rules, and that appropriate action be taken, which may include one or more of the following:

- A written apology;
- A written warning, censure, or reprimand;
- Withholding of increment, promotion, or pay rise;
- Reduction to a lower grade or position;
- Transfer or suspension from service, with or without salary, for a defined period;
- Mandatory counselling or, where appropriate, community service;
- Termination or dismissal from service;
- Any other action the Employer deems fit and proportionate.

The IC may also recommend that such amount may be deducted from the Respondent's salary or wages as it may consider appropriate and paid to the Aggrieved Woman/Employee or their legal heirs as compensation, having regard to the mental trauma, pain, suffering, and emotional distress caused; loss of career opportunity; medical expenses incurred; the income and financial status of the Respondent; and the feasibility of payment in lump-sum or instalments.

Where such deduction is not possible from the salary or wages of the Respondent, the IC may forward the order to the District Officer for recovery of the sum as an arrear of land revenue.

The Employer shall act on the IC's recommendations within 60 days of receipt thereof and confirm implementation to the IC. Post implementation of the actions, follow up with the complainant occurs to ascertain whether the behavior has in fact stopped, the solution is working satisfactorily and if no victimization of either party is occurring. This follow up is undertaken by the Complainant's Line Manager supported by HR.

17. FALSE OR MALICIOUS COMPLAINTS

Where the IC concludes that a complaint was malicious, or that the Complainant or any person making the complaint knowingly made a false complaint or knowingly produced a forged or misleading document or evidence, or where a witness has given false evidence, the IC may recommend appropriate action against such person in accordance with Section 14 of the Act and the applicable service rules.

The IC shall, however, ensure that the mere inability to substantiate a complaint or provide adequate proof shall not, by itself, attract action against the Complainant. A finding of malicious intent or knowingly false conduct shall be based on the evidence and circumstances established during the proceedings.

18. PREVENTION & AWARENESS MEASURES

The Company shall undertake appropriate measures for prevention of sexual harassment and awareness, including:

- Mandatory POSH awareness training for all employees, including site and contract personnel, at regular intervals and delivered in the local language where required;
- Display of the Policy, details of IC members, and complaint process at all offices and operational locations, as applicable;
- POSH orientation as a part of induction programme for all new joiners;
- Sensitisation for managers and supervisors to recognise early warning signs; and
- Circulation of this Policy to all employees by email and its availability on the HRMS or other designated internal platform, where applicable.

19. CONFIDENTIALITY

The identity and addresses of the Complainant, Respondent, and witnesses, and the contents of the complaint, statements, evidence, IC recommendations, and action taken, are strictly confidential and must not be published or disclosed to the public or the media.

Any contravention of this confidentiality obligation is punishable under the Act and will attract disciplinary action against the person responsible, in addition to any penalty prescribed under the Act or applicable service rules.

20. APPEAL

A person aggrieved by the recommendations of the IC, or by non-implementation of such recommendations, may prefer an appeal to the appellate authority in accordance with Section 18 of the Act and the applicable service rules, within 90 days from the date of the recommendations being communicated.

21. INVOCATION OF CRIMINAL LAW

Where an Aggrieved Woman/Employee chooses to pursue a criminal complaint under applicable criminal law, the Company will provide such assistance as may be required and appropriate in the circumstances.

Where the circumstances require referral to the police or other appropriate authorities, the Company shall take or facilitate such action in accordance with applicable law.

22. ANNUAL REPORT & GOVERNANCE

In accordance with Section 21 of the Act and the Rules, the IC shall prepare an Annual Report in the prescribed manner and submit it to the Employer and the District Officer.

The Annual Report shall include:

- The number of complaints of sexual harassment received during the year;
- The number of complaints disposed of during the year;
- The number of cases pending for more than 90 days;
- The number of workshops or awareness programmes conducted; and
- The nature of action taken by the Employer.

The Employer shall comply with Section 22 of the Act regarding inclusion of the prescribed information in its Annual Report or, where applicable, intimation of such information to the District Officer.

The Company may additionally report appropriate POSH compliance information to its Board and in applicable corporate governance, where required by applicable law or regulatory requirements.

23. RECORD-KEEPING, DOCUMENT CONTROL & DATA PROTECTION

HR and the IC shall maintain records of all complaints, inquiry proceedings, findings, evidence and outcomes in a confidential and access-controlled manner.

Records relating to a complaint and the proceedings arising therefrom shall be retained for a minimum period of seven (7) years from the date of closure or final disposal of the complaint, or for such longer period as may be required under applicable law, regulatory requirements, the Company's records retention schedule, or where any legal, disciplinary, regulatory or other proceedings relating to the matter are pending or reasonably anticipated.

Access to such records is restricted to persons directly involved in administering this Policy, members of the IC, Legal & Compliance, and statutory authorities legally entitled to access such information.

24. REVIEW & AMENDMENT

This Policy shall be reviewed at least annually by HR and Legal & Compliance and updated as necessary upon any amendment to the Act, the Rules, or other applicable law, subject to approval by the Board of Directors.

Version Control / Approval History

Version	Effective Date	Approved By	Board Resolution Date	Amendment / Revision Details
1	August 01, 2025	Board of Directors	September 05, 2026	Initial adoption of the POSH Policy

Annexure – Notice for Display at the Workplace**NOTICE TO ALL EMPLOYEES**

Dear All,

Sub: Constitution of the **Internal Committee (IC)** for Prevention, Prohibition and Redressal of sexual harassment at the workplace — NDR Smart Spaces Private Limited

Pursuant to **the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013**, an Internal Committee has been constituted to receive and redress complaints relating to sexual harassment at the workplace.

The composition of the Internal Committee is as follows:

S. No.	Name	Designation	Position
1.	Ms. Lavanya Prabhakar	HR Head	Presiding Officer
2.	Mr. Raj Srinivasan	Chief Executive Officer (CEO)	Member
3.	Mr. Jeevan Kumar Kodali	Legal Head	Member
4.	Ms. Swati Agarwal	Company Secretary	Member
5.	Ms. Sudha Murali	-	External Member

Lodging of Complaints:

Any complaint of sexual harassment may be lodged in writing with any member of the Internal Committee or through the dedicated mailbox: posh@ndram.com.

Complaints should be lodged within 3 months from the date of the incident or, in case of a series of incidents, within 3 months from the date of the last incident. The IC may extend the period by a further 3 months in accordance with the Act and this Policy.

The IC shall investigate and submit its findings and recommendations for appropriate disciplinary or criminal action, in accordance with the Act and this Policy while maintaining confidentiality throughout the process.

The Company's POSH Policy is available to all employees through the designated internal platform / HRMS.

All employees are encouraged to contribute towards maintaining a safe, respectful and harassment-free workplace.

FAQS RELATED TO THE POLICY

1. Can both Men and Women be victims of Sexual Harassment?

Yes, both men and women can be victims of sexual harassment. Anyone being sexually harassed, regardless of gender, should know that the law protects them and should feel encouraged to take appropriate action.

2. What is sexual harassment?

Sexual harassment includes any unwelcome act or behaviour of a sexual nature, whether physical, verbal or non-verbal. It may include unwelcome physical contact, requests for sexual favours, sexually coloured remarks, showing sexually explicit material, or other unwelcome conduct of a sexual nature.

3. Does sexual harassment have to happen physically?

No. Sexual harassment may be physical, verbal or non-verbal and may also occur through electronic or digital means, including emails, messages, social media, video calls or other work-related digital platforms.

4. Can an incident outside office premises be covered under the Policy?

Yes. Conduct occurring outside the Company's office or outside normal working hours may fall within the Policy if it arises out of or is connected with employment, including during business travel, Company events, work-related meetings or other work-related activities.

5. Can a complaint be made against someone who is not an employee of the Company?

Yes. The Policy applies to conduct involving third parties such as clients, customers, vendors, contractors, consultants, visitors and business partners, where the conduct is connected with the workplace or the Company's business.

6. How can I lodge a complaint?

A complaint may be made in writing to any member of the IC. Where a complaint cannot be made in writing, the Presiding Officer or any member of the IC shall provide reasonable assistance to the Complainant in reducing the complaint to writing. A complaint may also be submitted through the designated POSH email address notified by the Company.

7. Can the complaint be resolved through conciliation?

Yes. Before initiating a formal inquiry, the IC may, at the request of the Complainant, attempt to resolve the matter through conciliation. No monetary settlement shall be made as the basis of such conciliation. If conciliation does not result in a settlement, the matter will proceed to formal inquiry.

8. How long does the inquiry take?

The inquiry, including submission of the Inquiry Report, shall be completed within 90 days from the date of commencement of the inquiry, in accordance with the POSH Act.

9. How serious does the conduct have to be before I should make a complaint?

An employee should report any conduct that they reasonably believe is unwelcome or may constitute sexual harassment. A single incident may be sufficient, depending on the nature and circumstances of the conduct. Repeated or continuing unwelcome conduct may also constitute sexual harassment. Employees are encouraged to report concerns at the earliest opportunity rather than wait for the conduct to become more serious.

10. Will the complaint made be treated confidentially?

Yes. The Company and the IC shall maintain confidentiality throughout the complaint and inquiry process. The identity and addresses of the Complainant, Respondent and witnesses, the contents of the complaint, inquiry proceedings, recommendations and action taken shall not be disclosed or made public, except where disclosure is necessary for administering the process or is required by applicable law.

11. What if the Complainant or Respondent faces retaliation or victimisation during the process?

The Company does not tolerate retaliation, victimisation, intimidation or adverse treatment against the Complainant, Respondent or any witness for participating in the POSH process. Any such conduct should be reported immediately to any member of the IC, HR or Legal & Compliance. Appropriate action may be taken in accordance with the Policy and applicable service rules.

12. Can a person report an incident that they witnessed?

Yes. Employees who witness conduct that may constitute sexual harassment are encouraged to report the matter to the members of the IC. Where a complaint is made on behalf of an Aggrieved Woman, the requirements of the Act and Rules will apply.

13. Can I approach the police in addition to the IC?

Yes. Where the alleged conduct may constitute an offence under applicable criminal law, an Aggrieved Woman may pursue appropriate criminal remedies. The Company shall provide reasonable assistance as may be required and appropriate in the circumstances.

14. Can the Respondent have a lawyer represent them during the IC inquiry?

No. A legal practitioner shall not be permitted to represent either the Complainant or the Respondent before the IC.

15. Can action be taken against someone for making a false complaint?

Action may be recommended only where the IC concludes that the complaint was malicious, or that the Complainant or any person making the complaint knowingly made a false complaint or knowingly produced forged or misleading evidence, in accordance with the POSH Act. Mere inability to substantiate a complaint or provide adequate proof shall not, by itself, attract action.